NOTICE

OF

THE FIRST MEETING

OF

THE COMMITTEE OF CREDITORS OF

RAGHULEELA BUILDERS PRIVATE LIMITED
(UNDERGOING CORPORATE INSOLVENCY RESOLUTION PROCESS)

DAY, DATE & TIME:

MONDAY, 15TH NOVEMBER, 2021 AT 4:30 P.M.

VENUE:

1111/12, ELEVENTH FLOOR, C-WING, ONE BKC, BANDRA EAST, MUMBAI - 400051

THROUGH VIDEO CONFERENCING

NOTICE FOR THE FIRST MEETING OF COMMITTEE OF CREDITORS

NOTICE is hereby given that in accordance with the provisions of Regulations 17, 19, 20 & 21 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the first meeting of the Committee of Creditors of Raghuleela Builders Private Limited (RBPL) (Undergoing Corporate Insolvency Resolution Process) will be held on Friday, 15th, November, 2021 at 4:30 P.M. at 1111/12, 11th Floor, C-wing, One BKC, Bandra East, Mumbai - 400051 through video conferencing to transact the business as specified in the enclosed Agenda.

In accordance with the provisions of Regulation 21 and 23 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the members / participants of Committee of Creditors ("CoC") may attend/ participate and vote in the meeting either in person or through an authorized representative provided that such participant shall inform the undersigned, in advance, of the identity of the authorized representative, who will attend and vote on behalf of the participant in the meeting. Also, the participants shall be able to participate through video conferencing or other audio / visual means. In this regard, the participant is requested to intimate the undersigned at least 24 (Twenty Four) hours in advance, i.e. by 14th November, 2021 till 4.30 P.M.

In terms of the Section 21(2) of the Insolvency and Bankruptcy Code, 2016, a related party to whom a corporate debtor owes a financial debt shall not have any right of representation, participation and voting in the meeting of Committee of Creditors. However, the said provision shall not apply to a financial creditor, regulated by a financial sector regulator, if it is a related party of the corporate debtor solely on account of conversion or substitution of debt into equity shares or instruments convertible into equity shares, prior to the Insolvency Commencement Date (i.e. 4th October, 2021 in this case).



Sd/-
VANDANA GARG
Interim Resolution Professional
In the matter of Raghuleela Builders Private Limited
Regn No: IBBI/IPA-001/IP-P00025/2016-17/10058
Add: Unit 307, 3rd Floor, Exgellencia Lodha Supremus 2, Wagle Estate, Panchpakhadi, Thane, Maharashtra – 400604.
Email Id: cirp.raghuleela@gmail.com; vskgarg0899@gmail.com;
Mob: 8828009848, 7021587702

Date: 10.11.2021
Place: Mumbai

Enclosed:
(1) List of persons to whom the notice of the CoC meeting is being sent;
(2) Agenda, Notes to Agenda, Explanatory Statements and the Resolutions proposed to be passed.

NOTICE ALONG WITH AGENDA BEING SENT TO:

A. Financial Creditors – Members of Committee of Creditors.

S.No.	Name	E-mail
1.	Bank of Baroda	rm2.sammum@bankofbaroda.com sammumbob@gmail.com
2.	Yes Bank	nishit.hathi@yesbank.in hitesh.darji@yesbank.in rahul.rana3@yesbank.in
3.	Moon Star Securities Trading & Finance Co. Ltd	Moonstarsecurities@gmail.com

B. Members of Board of Directors of Corporate Debtor (powers suspended)

S. No.	Name of Directors	Email ID
1.	Mr. Sanjay Chhabria	sanjay@raddiusdevelopers.com sanjay@radiusdevelopers.com
2.	Mrs. Ritu Sanjay Chhabria	sanjay@raddiusdevelopers.com sanjay@radiusdevelopers.com

C. Operational Creditors: No Operational Creditors is having aggregate debt of 10% or more of the total debt of the Corporate Debtor.

AGENDA FOR THE MEETING

Agenda for the First Meeting of the Committee of Creditors **("CoC")** of Raghuleela Builders Private Limited ("RBPL/ Corporate Debtor") to be held on Monday, 15th November, 2021 at 4:30 PM at 1111/12, 11th Floor, C-wing, One BKC, Bandra East, Mumbai - 400051 through video conferencing is as follows:

Item No.	Particulars
	A. List of matters to be discussed/noted
1.	The Interim Resolution Professional **("IRP")** to take the chair;
2.	To ascertain the quorum of the meeting in accordance with the provisions of Regulations 22 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016;
3.	To take note of the list of creditors filed before the Hon'ble National Company Law Tribunal (NCLT), Mumbai.
4.	To take note on the status of control and custody of the assets of Corporate Debtor and its operations;
5.	To take note of the Financial Statement of the Corporate Debtor as on Insolvency Commencement Date i.e. 04.03.2021.
	B. List of issues to be voted upon after discussion.
1.	To ratify the remuneration of IRP which, if ratified, shall be treated as part of the Insolvency Resolution Process cost in terms of Regulation 31 Read with regulation 33 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016
2.	To ratify the expenses incurred by the IRP which, if ratified, shall be treated as part of the Insolvency Resolution Process cost in terms of Regulation 31 Read with Regulation 33 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016;
3.	To appoint a Resolution Professional in terms of section 22(2) of the Insolvency & Bankruptcy Code, 2016. The Interim Resolution Professional, being eligible, offers himself for appointment as Resolution Professional;
4.	To fix the remuneration of the Resolution Professional in conducting the Corporate Insolvency Resolution Process for the remaining period of CIRP. The remuneration so approved shall constitute Insolvency Resolution Process Cost in terms of Regulation 31 Read with Regulation 34 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016;
5.	To reduce the notice period for convening the meeting of CoC from a minimum of five days to a minimum of two days.
	C. Any other matter with the permission of the chair



Sd/-
VANDANA GARG
Interim Resolution Professional
In the matter of Raghuleela Builders Private Limited
Regn No: IBBI/IPA-001/IP-P00025/2016-17/10058
Add: Unit 307, 3rd Floor, Exgellencia Lodha Supremus 2, Wagle Estate, Panchpakhadi, Thane, Maharashtra – 400604.
Email Id: cirp.raghuleela@gmail.com; vskgarg0899@gmail.com;
Mob: 8828009848, 7021587702
Date: 10.11.2021
Place: Mumbai

P. S.: Notes to the Agenda appended hereto is an integral part of the Notice

NOTES TO AGENDA AND GENERAL GUIDELINES

1. In terms of Regulation 16A(9) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the authorised representative shall circulate the agenda to creditors in a class, and may seek their preliminary views on any item in the agenda to enable him to effectively participate in the meeting of the committee and that the creditors shall have a time window of at least twelve hours to submit their preliminary views, and the said window opens at least twenty-four hours after the authorised representative seeks preliminary views and such preliminary views shall not be considered as voting instructions by the creditors.

2. In terms of Section 25A(2) of the Insolvency and Bankruptcy Code, 2016, it shall be the duty of the authorized representative to circulate the agenda and minutes of the meeting of the committee of creditors to the financial creditors he represents;

3. As per Regulation 13(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the list of creditors will be available for inspection at the venue of the Meeting;

4. In terms of Regulation 21(1) and 23(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, a participant can attend the Meeting through video conferencing or other audio and visual means. Thus, participants intending to attend the meeting though such means, he/she shall write to the signatory of the notice at least Twenty Four hours before the time fixed for the Meeting at the email id mentioned herein along with their location. It is to be noted that the participants attending the Meeting through such means would also be considered as part of quorum;

5. As per Regulation 21(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, a participant may attend the Meeting by himself or through an authorized representative. A participant attending through an authorized representative shall inform the signatory of the notice, at least Twenty Four hours in advance, the identity of the authorized representative who will attend and vote at the Meeting on its behalf. Also, the authorized representative is requested to carry an Identity Proof for his/ her identification;

6. As per Section 21 of the Insolvency and Bankruptcy Code, 2016, a financial creditor or authorized representative of such financial creditor, if it is a related party of the corporate debtor, shall not have any right of representation, participation or voting in the Meeting, subject to exceptions mentioned thereunder;

7. As per Section 21(8) of the Insolvency and Bankruptcy Code, 2016, all decisions of the CoC (except those u/s 12, 22, 27, 28, 30 and 33) shall be taken by a vote of not less than Fifty One percent of the Financial Creditors. Whereas, all decision of the CoC (those under the exception) shall be taken by a vote of not less than Sixty Six percent of the Financial Creditors;

8. As per Section 25(3A) of the Insolvency and Bankruptcy Code, 2016, the authorized representative shall cast his vote on behalf of all the financial creditors he represents in accordance with the decision taken by a vote of more than fifty per cent of the voting share of the financial creditors he represents, who have cast their vote;

9. As per Section 24(4) of the Insolvency and Bankruptcy Code, 2016, the directors of the Corporate Debtor attending the Meeting shall not have any right to vote at the Meeting and absence of any such director shall not invalidate the proceedings of the meeting;

10. As per Regulation 25(6) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the authorised representative shall circulate the minutes of the meeting to creditors in a class and announce the voting window at least twenty-four hours before the window opens for voting instructions and keep the voting window open for at least twelve hours;

11. As per Regulation 26(1A) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the authorized representative shall exercise the votes either by electronic means or through electronic voting system as per the voting instructions received by him from the creditors in the class;

12. As per provisions of Regulation 25(4) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, at the conclusion of voting at the meeting, the decision taken on each of the items along with the names of the Members of the CoC who voted for or against the decision, or abstained from voting will be announced;

INSTRUCTIONS FOR E-VOTING ARE AS UNDER:-

(i) The Resolution Professional has made necessary arrangements with Right2Vote Infotech Private Limited to facilitate the e-voting. In connection thereto, the following schedule of timing is fixed in accordance with the provisions contained in the Insolvency and Bankruptcy Code, 2016 andRegulations thereto.

(ii) The voting period shall begin after the minutes of the meeting have been circulated by electronic means to all the members of committee and remains open for at-least 24 hours thereafter ("Voting Period"). During this period, the members of the CoC are being provided with a platform to cast their vote electronically.

(iii) As specified in Regulation 26 (3) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, at the end of the voting period, the e-voting portal shall forthwith be blocked by the service provider (LIPL).

(iv) As specified in Regulation 26 (4) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, at the conclusion of a vote held under this Regulations, the Resolution Professional shall announce and make a written record of the summary of the decision taken on a relevant agenda item along with the names of the members of the committee who voted for or against the decision, or abstained from voting.

(v) As specified in Regulation 26 (5) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the Resolution Professional shall circulate a copy of the record made under sub-regulation (4) to all participants by electronic means within 24 hours of the conclusion of the voting.

(vi) Subject to activation of E-voting portal on request of CoC

- **Circulation of Minutes of the meeting by the RP :** within 48 hours of conclusion of the meeting.
- **Voting to start for the Financial Creditors in any class**: 24 hours after circulation of Minutes by the AR to the members of Financial Creditor in a class (Homebuyers).
- **Voting to close for the Financial Creditors in any class :** 72 hours after commencement of voting (minimum prescribed time is 12 hours).
- **Voting to close for other Financial Creditors (including AR) :** 24 hours after commencement of the voting

(vii) E-Voting Procedure:

1. Users will be sent e-voting invite emails with the voting website link and the duration of the voting by the voting agency, EVotes.
2. Once voting is opened, they can click on the link given in the email of above step 1 and visit the evoting website. On the website they'll be shown an input box where they'll have to enter their email address.
3. Users of Gmail, Outlook, Hotmail and Yahoo can authenticate themselves automatically by clicking on the button provided. Also all users will have the option of generating OTP which will be sent to their email.
4. Once authentication is successful, they'll then see the agendas and can votes, YES, NO or ABSTAIN as per their choice.
5. A receipt will be shown to them after their vote is complete. They can either print it or send it to their email. This receipt can also be re-generated anytime.

A. LIST OF MATTERS TO BE DISCUSSED/NOTED

ITEM NO. A1

THE INTERIM RESOLUTION PROFESSIONAL ("IRP") TO TAKE THE CHAIR

As per Regulation 24(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the Interim Resolution Professional shall act as the Chairman of the meeting of the CoC. Accordingly the Interim Resolution Professional to take the chair of first CoC meeting of Corporate Debtor.

ITEM NO. A2

TO ASCERTAIN THE QUORUM OF THE MEETING IN ACCORDANCE WITH THE PROVISIONS OF REGULATIONS 22 OF THE INSOLVENCY AND BANKRUPTCY BOARD OF INDIA (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS) REGULATIONS, 2016

As per Regulation 22(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the quorum for the meeting of members of the committee shall be at least 33% of the voting rights, present either in person, or by video conferencing or other audio/visual means. Nevertheless, the committee may modify the percentage of voting rights required for quorum in respect of any future meetings of the committee.

ITEM NO. A3

TO TAKE NOTE OF THE LIST OF CREDITORS FILED BEFORE THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL (NCLT), NEW DELHI.

The application in the instant matter was filed by Financial Creditor of Raghuleela Builders Private Limited ("Corporate Debtor"), for initiating Corporate Insolvency Resolution Process ("CIRP") of the Corporate Debtor, under Section 7 of the Insolvency and Bankruptcy Code, 2016 ("IBC") read with Rule 4 of the Insolvency & Bankruptcy (Application to Adjudicating Authority) Rules, 2016 before the Hon'ble National Company Law Tribunal ("NCLT"), Mumbai. The matter was admitted by the Hon'ble NCLT vide its order dated 04.10.2021 and the undersigned was appointed as Interim Resolution Professional (IRP). The Copy of the order was available and downloaded from the designated website of the Hon'ble NCLT on 20.10.2021, therefore the date of appointment of Interim Resolution Professional is 20.10.2021 on which date copy of order of Hon'ble NCLT, Mumbai Bench was available on website.

That accordingly Public Announcement was made on 21.10.2021 in terms of Regulation 6 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016. The public announcement was published on 21.10.2021 in Financial Express (English) and Mumbai Lakshdeep (Marathi) in Mumbai region, where the Registered Office and Principal place of business of the Corporate Debtor is situated for inviting all the creditors of Raghuleela Builders Private Limited to submit their claim to the IRP. The last date for submission of Claim by the creditors was 05.11.2021.

The Interim Resolution Professional after making public announcement in Form – A has received claims in following manner:

- 3 numbers of claims from Financial creditors

That till the date of filling the reports under Regulation 13(2) (d) and 17 (1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the undersigned received above mentioned claims from Creditors and informed the status of claim to the claimant accordingly.

Accordingly, a list of creditor containing name of creditors along with the amount claimed by them, the amounts of their claim admitted and the security interest, if any, in respect of such claim has been prepared and filed through email under Regulation 13 (2) (d) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, with the Hon'ble NCLT Mumbai, on 10.11.2021. Further, a report, in compliance with Regulation 17 (1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, certifying constitution of committee of creditorswas also prepared and filed through email on 10.11.2021 with the Hon'ble NCLT, Mumbai.

Constitution of Committee of Creditors
As on Insolvency commencement date
04.10.2021

			(Amount in INR)	
S.No	**Name of the Financial Creditor**	**Total Amount Claimed**	**Total Amount under verification**	**Voting Share in %**
1	Yes Bank	8,61,35,50,039	8,61,35,50,039	58.66
2	Bank of Baroda	5,91,48,06,683	5,91,48,06,683	40.28
3	Moon Star Securities & Finance Co. Ltd	15,60,39,716	15,60,39,716	1.06
	Total	**14,68,43,96,438**	**14,68,43,96,438**	**100.00**

LIST OF OPERATIONAL CREDITORS
As on Insolvency commencement date
04.10.2021

The Interim Resolution Professional has not received any claim from Operational Creditors till date.

ITEM NO. A4

TO TAKE NOTE ON THE STATUS OF CONTROL AND CUSTODY OF THE ASSETS OF CORPORATE DEBTOR AND ITS OPERATIONS;

In terms of Section 18 of IBC, 2016, the IRP is mandated to take control and custody of all assets of the Corporate Debtor. The IRP in discharge of her duty had visited the Principal place of office situated at 14th Floor, A Wing, BKC One, Bandra Kurla Complex, Bandra East, Mumbai alongwith her team on 05th October onwards. The status of the sameshall be apprised by the IRP to the CoC in the meeting.

ITEM NO. A5

TO TAKE NOTE OF THE FINANCIAL STATEMENT OF THE CORPORATE DEBTOR AS ON INSOLVENCY COMMENCEMENT DATE I.E. 04.10.2021.

The Corporate Debtor is still preparing the Financial Statement (Provisional) as on Insolvency Commencement Date i.e. 04.10.2021 and the same shall be shared with the CoC when received by the Interim Resolution Professional / Resolution Professional.

B. ISSUES TO BE VOTED UPON AFTER DISCUSSION

Resolutions to be passed, with or without modifications, at the meeting:

ITEM NO. B1

TO RATIFY THE REMUNERATION OF IRP WHICH, IF RATIFIED, SHALL BE TREATED AS PART OF THE INSOLVENCY RESOLUTION PROCESS COST IN TERMS OF REGULATION 31 READ WITH REGULATION 33 OF THE INSOLVENCY AND BANKRUPTCY BOARD OF INDIA (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS) REGULATIONS, 2016

Facts and Explanatory Statement:

The application for initiation of CIRP was filed by Financial creditor. Upon admission of the application for Corporate Insolvency Resolution Process ("CIRP"), the Hon'ble Adjudicating Authority vide its order dated 04.10.2021 appointed the undersigned, Vandana Garg, Insolvency Professional (IBBI Registration No. IBBI/IPA-001/IP-P00025/2016-17/10058) to act as Interim Resolution Professional (IRP) for conducting the CIRP in this matter.

The CoC ratify the Professional Fee of IRP for rendering her professional services to act as IRP in the matter. The IRP proposes monthly Professional Fee of Rs. 1,50,000/- per month plus GST and plus Out of pocket expenses (on actuals). If so fixed and if ratified by the CoC, the professional fee shall form part of insolvency resolution process cost. Accordingly, the following Resolution for ratification and approval of Professional Fee of IRP shall be placed before the Committee for their consideration:

Resolution:

To consider and if thought fit, to pass with or without modification, the following Resolution:

"**RESOLVED THAT** pursuant to Regulation 33 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 and other applicable provisions of the Insolvency and Bankruptcy Code, 2016, the remuneration of Rs. 1,50,000/- per month plus applicable taxes plus out of pocket expenses (on actuals) for rendering her professional services as IRP till the conclusion of theFirst meeting of the Committee of Creditors, be and is hereby ratified and approved."

"**RESOLVED FURTHER THAT** pursuant to Regulation 31(e) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 and other applicable provisions of the Insolvency and Bankruptcy Code, 2016, the remuneration of IRP be and is hereby ratified and the same shall be treated as part of the insolvency resolution process cost."

ITEM NO. B2

TO RATIFY THE EXPENSES INCURRED BY THE IRP WHICH, IF RATIFIED, SHALL BE TREATED AS PART OF THE INSOLVENCY RESOLUTION PROCESS COST IN TERMS OF REGULATION 31 READ WITH REGULATION 33 OF THE INSOLVENCY AND BANKRUPTCY BOARD OF INDIA (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS) REGULATIONS, 2016;

Facts and Explanatory Statement:

That upon admission of the application for initiation of the Corporate Insolvency Resolution Process ("CIRP"), the Hon'ble Adjudicating Authority vide its order in C.P. NO. 498/(IB)-MB-V/2021 dated 04.10.2021 appointed the undersigned, Vandana Garg, Insolvency Professional (IBBI Registration No. IBBI/IPA-001/IP-P00025/2016-17/10058) to act as Interim Resolution Professional(IRP) for conducting the CIRP in this matter. The IRP during the period of CIRP so far, has incurred some expenses for smooth conduct of the CIRP of the Corporate Debtor and in discharge of her duties as mandated under the provisions of IBC, 2016. The following expenses shall be placed by the IRP before the members in the meeting. The expenses so ratified, shall form the part of the Insolvency Resolution Process Cost. Accordingly, the following Resolution for ratification and approval of expenses incurred by IRP shall be placed before the Committee of Creditors for their consideration in the meeting.

EXPENSES INCURRED BY IRP
TILL THE 1ST MEETING OF COC – 09.04.2021

	PARTICULARS	AMOUNT (Rs.)
1.	**Form-A Publication Expenses dated 21.10.2021** "Financial Express (Mumbai editions in English), Mumbai Lakshdeep, (Mumbai editions in Marathi).	18,900/-
2.	Expenses incurred for preparation, notarization and submitting etc. for filing of Reports dated 10.11.2021 under Regulation 13 (2) (d) of IBBI (Insolvency Resolution Process for Corporate Persons), Regulations, 2016, with the Hon'ble NCLT Mumbai Bench, andunder Regulation 17 (1) of IBBI (Insolvency Resolution Process for Corporate Persons), Regulations, 2016, certifying constitution of committee of creditors was also filed with the Hon'ble NCLT Mumbai Bench.	5,000/-
	TOTAL	**23,900/-**

Resolution:

To consider and if thought fit, to pass with or without modification, the following Resolution:

"RESOLVED THAT pursuant to Regulation 31(e) read with Regulation 33 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 and other applicable provisions of the Insolvency and Bankruptcy Code, 2016, the expenses of Rs.23,900/- incurred by the IRP be and are hereby ratified and approved and the same shall be treated as part of the insolvency resolution process cost."

ITEM NO. B3

TO APPOINT A RESOLUTION PROFESSIONAL IN TERMS OF SECTION 22(2) OF THE INSOLVENCY & BANKRUPTCY CODE, 2016. THE INTERIM RESOLUTION PROFESSIONAL, BEING ELIGIBLE, OFFERS HIMSELF FOR APPOINTMENT AS RESOLUTION PROFESSIONAL;

Facts and Explanatory Statement:

As per Section 22(2) of the Insolvency and Bankruptcy Code, 2016, the Committee of Creditors (CoC), may, in the first Meeting, by a majority vote of not less than Sixty-six per cent of the voting share of the members of the CoC, either resolve to appoint the IRP as a Resolution Professional ("RP") or to replace the IRP by another Insolvency Professional.

The undersigned, Vandana Garg, being eligible for the appointment as Resolution Professional, offers herself for appointment as Resolution Professional before the members of the Committee in the Corporate Insolvency Resolution Process of Raghuleela Builders Private Limited and if considered favourable, then in terms of Regulation 3 (1A) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 the undersigned shall place her written consent to act as Resolution Professional in the specified Form-AA in the meeting. Accordingly, the following Resolution for appointment of RP shall be placed before the Committee of Creditors for their consideration in the meeting.

Resolution:

To consider and if thought fit, to pass with or without modification, the following Resolution:

"**RESOLVED THAT** pursuant to Section 22(2) and other applicable provisions, if any, of the Insolvency and Bankruptcy Code, 2016 and in accordance with regulations made thereunder, approval of committee of creditors be and is hereby accorded for appointment of Ms. Vandana Garg, an Insolvency Professional having IBBI Registration No. IBBI/IPA-001/IP-P00025/2016-17/10058, to act as Resolution Professional in the Corporate Insolvency Resolution Process of Raghuleela Builders Private Limited (RBPL).

ITEM NO. B4

TO FIX THE REMUNERATION OF THE RESOLUTION PROFESSIONAL IN CONDUCTING THE CORPORATE INSOLVENCY RESOLUTION PROCESS FOR THE REMAINING PERIOD OF CIRP. THE REMUNERATION SO APPROVED SHALL CONSTITUTE INSOLVENCY RESOLUTION PROCESS COST IN TERMS OF REGULATION 31 READ WITH REGULATION 34 OF THE INSOLVENCY AND BANKRUPTCY BOARD OF INDIA (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS) REGULATIONS, 2016;

Facts and Explanatory Statement:

As per Regulation 34 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the CoC shall fix the fee payable and the expenses to be incurred by the RP and such fee and expenses, if ratified, shall constitute insolvency resolution process costs. Accordingly, the following Resolution for ratification and approval of Professional Fee of RP shall be placed before the Committee of Creditors for their consideration in the meeting

Resolution:

To consider and if thought fit, to pass with or without modification, the following Resolution:

"**RESOLVED THAT** pursuant to Regulation 34 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 and other applicable provisions of the Insolvency and Bankruptcy Code, 2016, the monthly remuneration of Resolution Professional of Rs. 1,50,000/- plus applicable taxes plus out of pocket expenses (on actuals) till the conclusion of CIRP including the extended period, if any, be and is hereby approved."

"**RESOLVED FURTHER THAT** the committee of creditors hereby authorise the RP to incur the expenses required to be incurred by her towards execution of her duties as RP including towards, NCLT filing(s) as and when needed, appointment of counsels, if required, information technology expenses, valuers costs, transaction audit expenses, compliance costs, accounting and audit costs, security expenses, other human resources costs, CoC Meeting expenses and any other out of pocket expenses along with applicable taxes, wherever applicable.

"**RESOLVED FURTHER THAT** the Resolution Professional shall provide details of expenses incurred by her in every subsequent CoC meeting for the information of the committee member and its subsequent ratification and approval."

ITEM NO. B5

TO REDUCE THE NOTICE PERIOD FOR CONVENING THE MEETING OF COC FROM A MINIMUM OF FIVE DAYS TO A MINIMUM OF TWO DAYS.

Facts and Explanatory Statement:

As per the provision of Regulation 19(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the CoC may reduce the notice period from five days to such other period of not less than twenty four hours, as it deems fit.

In this case, shorter notice period of not less than 2 (two) days for convening the Meeting of the committee of creditors be considered for the sake of administrative convenience and for having the option for calling the meeting of committee of creditors on a shorter notice to be able to take expeditious decisions during the course of CIRP.

The following Resolution is therefore placed before the member of the committee of creditors for their consideration:

Resolution:

To consider and if thought fit, to pass with or without modification the following Resolution:

"**RESOLVED THAT** pursuant to Regulation 19(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 and the relevant provisions of the Insolvency and Bankruptcy Code, 2016, approval of the committee of creditors be and is hereby accorded for allowing the Interim Resolution Professional/ Resolution Professional to give shorter notice period of not less than 2 (two) days for the purpose of convening the meetings of the committee of creditors."

C. ANY OTHER MATTER WITH THE PERMISSION OF THE CHAIR

The member of committee is entitled to raise any other matter for discussion and due deliberation with the permission of the Chairman. In case, there is no such matter from member of the CoC, the meeting will be concluded with a vote of thanks by IRP.



Sd/-
VANDANA GARG
Interim Resolution Professional
In the matter of Raghuleela Builders Private Limited
Regn No: IBBI/IPA-001/IP-P00025/2016-17/10058
Add: Unit 307, 3rd Floor, Exgellencia Lodha Supremus 2, Wagle Estate, Panchpakhadi, Thane, Maharashtra – 400604.
Email Id: cirp.raghuleela@gmail.com; vskgarg0899@gmail.com;
Mob: 8828009848, 7021587702

Date: 10.11.2021
Place: Mumbai